

#	Case Name	Tentative Ruling
101	Batra v. Regents, 2026-01564048	DEMURRER – CONTINUED
102	Capers v. ESP Holdings, 2026-01537790	DEMURRER – CONTINUED
103	Carpenter v. Frey, 2026-01544571	DEMURRER – SUSTAINED IN PART AND OVERRULED IN PART MOTION TO STRIKE - DENIED Plaintiffs sued Defendant for causes of action related to the alleged lack of habitability of the home they rented from her, especially with regard to mold. Defendant demurs to the third, fifth, seventh and eighth causes of action, and moves to strike the punitive damages allegations and claim for relief. <u>Third Cause of Action – Breach of Contract</u> “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 459.) Here, Plaintiff has not attached the written contract or sufficient set forth the terms verbatim in the body of the complaint. The Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND as to the third cause of action for breach of contract. <u>Fifth Cause of Action – IIED, Seventh Cause of Action – Fraudulent Concealment, Eighth Cause of Action – Intentional Misrepresentation</u> The Demurrer is OVERRULED as to these causes of action. The Court finds that the Complaint sufficiently states a claim for intentional infliction of emotional distress because the complaint alleges that Defendant

	purposefully exposed Plaintiffs to uninhabitable conditions with reckless disregard for emotional distress of being exposed to and getting sick from the uninhabitable environment of the premises. The conditions alleged are sufficiently “outrageous” as they go beyond those that should be tolerated in a civilized society. Such conditions alleged include the presence of several types of mold and gas leaks along with Defendant’s refusal to undertake any remediation. (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273, as modified on denial of reh'g (May 15, 2023); Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007; Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) Likewise, the Court finds that Plaintiffs have sufficiently alleged a cause of action for fraudulent concealment. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal 4th 631, 638.) Plaintiffs and Defendant are in a landlord-tenant relationship, which is a transactional relationship that gives rise to the duty to disclose. Plaintiffs allege that Defendant failed to disclose the elevated presence of mold, mildew, other microbial growth and other harmful environmental conditions. Plaintiffs also allege that “prior to Plaintiffs moving into the Property, Defendants knew, or had reasonable cause to believe, that mold, both visible and invisible or hidden, was present in the Property, and that the mold either exceeded the permissible exposure limits established by § 26103(a), (b), and (c), or that the mold posed a health threat according to the California State Department of Health Services’ guidelines.” Plaintiffs further allege that “[n]one of these defective conditions at the Property were known to Plaintiffs and Plaintiffs reasonably relied on the Defendants’ assurances that the Property defects had been properly addressed even though Defendants knew that they had not been properly addressed.” Plaintiffs allege they suffered physical as well as financial injuries as a result of these concealments. Finally, the Court also finds that Plaintiffs have sufficiently alleged their eighth cause of action for
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		intentional misrepresentation. (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Again, Plaintiffs allege that Defendant made representations about the habitability of the premises and that Defendant either know or reasonably should have known that the premises were not habitable given the presence of toxic mold. Still, Defendant represented that the premises were safe in order to induce Plaintiffs to reside at and pay rent for the premises. Plaintiffs allege they were justified in believing Defendant's representations regarding the habitability and safety and that they suffered physical as well as financial injuries as a result of these misrepresentations. <u>Motion to Strike</u> The Court finds that Plaintiffs have sufficiently alleged that Defendant acted with a conscious disregard for the safety of Plaintiffs by failing to disclose the presence of toxic mold on the property and failing to remediate the toxic mold. Plaintiffs allege that Defendant had the requisite knowledge to eliminate the toxic mold and instead chose to subject Plaintiffs to its toxicity. These allegations are sufficient to state a claim for relief of punitive damages. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867; Civ. Code, § 3294; Code Civ. Proc., §§ 435 and 436.) Defendant to give notice.
104	Chao v. Air Combat USA, 2022-01258475	DEMURRER TO AMENDED COMPLAINT – SUSTAINED IN PART WITH LEAVE TO AMEND AND OVERRULED IN PART Defendants, Air Combat USA, Inc. and Michael J. Blackstone, demur to the second and fourth causes of action in the First Amended Complaint of Plaintiff, Jack W. Chao. The demurer is OVERRULED, in part, SUSTAINED, in part. Initially, Plaintiff correctly contends that the notice of motion misidentifies the causes of action at issue as the second cause of action for conversion and fourth cause of action for unjust enrichment. Rather, Defendants demur to the second cause of action for unjust enrichment/restitution and fourth cause of action for fraud in the inducement, fraudulent concealment, and